# Automated License Plate Readers (ALPRs)

## 463.1 PURPOSE AND SCOPE

The purpose of this policy is to provide guidance for the capture, storage and use of digital data obtained through the use of Automated License Plate Reader (ALPR) technology.

## 463.2 ADMINISTRATION

The ALPR technology, also known as License Plate Recognition (LPR), allows for the automated detection of license plates. It is used by the San Mateo Police Department to convert data associated with vehicle license plates for official law enforcement purposes, including identifying stolen or wanted vehicles, stolen license plates and missing persons. It may also be used to gather information related to active warrants,,, suspect interdiction, and stolen property recovery.

All installation and maintenance of ALPR equipment, as well as ALPR data retention and access, shall be managed by the ALPR Committee Captain or their designee. The ALPR Committee Captain or their designee will assign members under his/her command to administer the day-to-day operation of the ALPR equipment and data.

### 463.2.1 ALPR ADMINISTRATOR

The ALPR Committee Captain, as the ALPR Administrator, or their designee, shall be responsible for developing guidelines and procedures to comply with the requirements of Civil Code § 1798.90.5 et seq. These guidelines and procedures are delineated in this policy and/or in our Department's Automated License Plate Readers Operating Procedure.

## 463.3 DEFINITIONS

"**Automated license plate recognition operator**" or "**ALPR operator**," means a person that operates an ALPR system. For our Department purposes, this will usually refer to our personnel or authorized designee operating a vehicle or other item of equipment with ALPR cameras collecting license plate data.

"**Automated license plate recognition end-user**" or "**ALPR end-user**" means a person that accesses or uses an ALPR system. For our Department purposes, this will usually refer to our personnel or authorized designee accessing data on a retroactive basis that is collected and stored in a centralized database(s).

## 463.4 OPERATIONS

Use of an ALPR is restricted to the purposes outlined below. Department members shall not use, or allow others to use the equipment or database records for any unauthorized purpose (Civil Code § 1798.90.51; Civil Code § 1798.90.53).

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(a) An ALPR shall only be used for official law enforcement business by any Department member(s) or authorized designee whose job duties necessitate the use of ALPR and that have completed Department approved training.

(b) An ALPR may be used in conjunction with any routine patrol operation or criminal investigation. Reasonable suspicion or probable cause is not required before using an ALPR.

(c) Partial license plates and unique vehicle descriptions reported during major or serial crimes should be entered into the ALPR system in an attempt to identify suspect vehicles.

(d) No member of this department or authorized designee shall operate ALPR equipment or access ALPR data without first completing department-approved training. This training is further described in SOP 205.

(e) A search by any Department members(s) of ALPR data shall be completed by providing a reason for the search, usually an agency case number, incident number, or a warrant number.

(f) The employee or authorized designee using our ALPR system must recognize that the data collected from the ALPR device, and the content of referenced hotlists, consists of data that may or may not be accurate, despite ongoing efforts to maximize the currency and accuracy of such data.To the greatest extent possible, vehicle and subject information will be verified using separate law enforcement information sources to confirm the vehicle or subject's identity and justification for contact.Users of ALPR data must to the fullest extent possible visually confirm the actual plate characters generated by the ALPR readers correspond with the digital image of the license plate in question.

(g) A search of the ALPR data may not be used to investigate, interrogate, detain, detect, or arrest person for immigration purposes. (CA Gov Code 7284)

## 463.5 DATA COLLECTION AND RETENTION

The ALPR Committee Captain or their designee is responsible for ensuring systems and processes are in place for the proper collection and retention of ALPR data.

All ALPR data downloaded to the server should be stored for 30 days from the collection date. ALPR information being used as criminal evidence will be retained until the criminal matter is resolved and/or in accordance with other criminal evidentiary retention schedules. All data and images gathered by ALPR are for the official use of the San Mateo Police Department and because such data may contain confidential CLETS information, it is not open to public review. ALPR information gathered and retained by this Department may be used and shared with prosecutors or others only as law permits.

Data relevant to a criminal prosecution should be exported from the ALPR system and securely transferred to digital evidence storage according to established department procedures.

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### 463.6 ACCOUNTABILITY

All data will be closely safeguarded and protected by both procedural and technological means. The San Mateo Police Department will observe the following safeguards regarding access to and use of stored data (Civil Code § 1798.90.51; Civil Code § 1798.90.53):

(a) All ALPR data downloaded to the mobile workstation and in storage shall be accessible only through a login/password-protected system capable of documenting all access of information by name, date and time (Civil Code § 1798.90.52).

(b) Members approved to access ALPR data under these guidelines are permitted to access the data for legitimate law enforcement purposes only, such as when the data relates to a specific criminal investigation or department-related civil or administrative action.

(c) ALPR system audits should be conducted on a regular basis, as described in SOP 205.

For security or data breaches, see the Records Release and Maintenance Policy.

### 463.7 POLICY

The policy of the San Mateo Police Department is to utilize ALPR technology to capture and store digital license plate data and images while recognizing the established privacy rights of the public.

All data and images gathered by the ALPR are for the official use of this department. Because such data may contain confidential information, it is not open to public review.

### 463.8 ALPR DATA SHARING

The Department may share ALPR data only with another California public agency and only as authorized by any other applicable federal or state law. The Department shall not sell, share, or transfer ALPR data to any private entity, nongovernmental organization, or out-of-state agency except as otherwise expressly authorized by law.

The following procedures are guidelines for the ALPR in-state network data-sharing relationship requests:

(a) The agency makes a written request for the ALPR in-state network data-sharing relationship that includes:

  (a) The name of the agency.

  (b) The name of the person requesting.

  (c) The intended purpose of obtaining the data sharing-relationship

(b) The request is reviewed by the ALPR Program Administrator and approved before the request is fulfilled.

(c) The approved request is retained on file.

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Requests for ALPR data by non-California public agencies will be processed as provided in the Records Maintenance and Release Policy (Civil Code § 1798.90.55).

APPROVAL CRITERIA

The ALPR Program Administrator shall establish and maintain written criteria for evaluating all requests for in-state ALPR network-sharing access. Before approving a network-sharing relationship, the ALPR Program Administrator shall determine that:

(a) The requesting entity is a California public agency authorized by law to receive ALPR information.

(b) The requesting agency has a publicly available ALPR Usage and Privacy Policy that complies with California Civil Code sections 1798.90.51 through 1798.90.55.

(c) The requesting agency certifies that ALPR information will be accessed and used only for lawful purposes authorized by California law.

(d) The requesting agency agrees to comply with all applicable security, audit, retention, privacy, and dissemination requirements established by law and Department policy.

(e) A written agreement or documented authorization governing the network-sharing relationship has been executed and approved by the Department.

DENIAL CRITERIA

The ALPR Program Administrator shall deny a request for network-sharing access when:

(a) The requesting entity is not an eligible California public agency.

(b) The request is not authorized by law.

(c) The requesting agency fails to provide the certifications or documentation required by this policy.

(d) The requesting agency has demonstrated a history of misuse of ALPR information or noncompliance with applicable law or policy.

(e) Approval would create an unacceptable legal, operational, security, or privacy risk.

PERIODIC REVIEW

The ALPR Program Administrator shall review each approved in-state network-sharing relationship at least annually to determine continued compliance with applicable law and Department policy.

The review shall include, at a minimum:

(a) Verification that the participating agency remains eligible to receive ALPR information.

(b) Confirmation that the agency continues to maintain a compliant ALPR Usage and Privacy Policy.

(c) Verification that the operational need for continued sharing remains valid.

The results of the review shall be documented and retained in accordance with the Department's records retention schedule.

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SUSPENSION OR TERMINATION

The Department may suspend or terminate a network-sharing relationship immediately whenever the ALPR Program Administrator determines that:

(a) The participating agency no longer qualifies as an eligible California public agency.

(b) The agency violates California law governing ALPR information.

(c) The agency violates the terms of the applicable sharing agreement.

(d) Continued sharing presents an unacceptable privacy, legal, operational, or cybersecurity risk.

(e) Continued sharing is no longer necessary to accomplish a legitimate law enforcement purpose.

The ALPR Program Administrator shall document the basis for any suspension or termination and shall notify the participating agency of the decision.

DOCUMENTATION

The Department shall maintain records of all approvals, denials, periodic reviews, suspensions, and terminations of in-state ALPR network-sharing relationships. Such records shall include the basis for each decision and shall be retained in accordance with applicable records retention requirements.

## 463.9 TRAINING

The ALPR Administrator shall ensure that members receive department-approved training to operate or access the ALPR system (Civil Code § 1798.90.51; Civil Code § 1798.90.53). This training is further described in SOP 205.

## 463.10 ALPR DATA SEARCH AUDITS

It is the responsibility of the ALPR Committee Captain or the authorized designee to ensure an audit is conducted of ALPR data searches at least monthly for internal ALPR users and quarterly for external CA public agency users. The audit shall be documented in the form of an internal department memorandum to the Chief of Police. The memorandum shall include any data errors found so any such errors can be corrected. After review by the Chief of Police, the memorandum and any associated documentation shall be filed and retained.

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